

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

NELLY TATIS,

Index No.:

Plaintiff,

Plaintiff designates BRONX COUNTY as
the place of Trial.

-against-

The basis of venue is: CPLR § 504(3);

Location of Incident and Plaintiff's

Residence

CITY OF NEW YORK, POLICE OFFICER

NICHOLAS KONNER (Tax No. 940340),

POLICE OFFICER JOHN REPETTI (Tax No.

SUMMONS

937359), and OFFICERS JOHN DOE,

individually and in their official capacities.

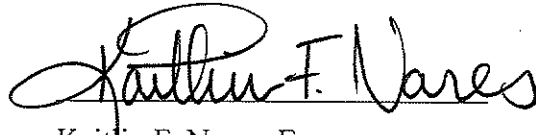
Defendant.

TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned to answer the verified complaint in this action and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear to answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

Dated: New York, New York

June 24, 2014

A handwritten signature in black ink, reading "Kaitlin F. Nares". The signature is fluid and cursive, with the first name "Kaitlin" being more prominent than the last name "Nares".

Kaitlin F. Nares, Esq.
Fisher, Byrjalsen & Kreizer, PLLC
Attorney for Plaintiff
291 Broadway, Suite 709
New York, NY 10007
(212) 962-0848

Defendants' Addresses:

City of New York
100 Church Street
New York, NY 10007

Police Officer Nicholas Konner (Tax No. 940340)
52ND NYPD Precinct
3016 Webster Avenue
Bronx, NY, 10467-4901

Police Officer John Repetti (Tax No. 937359)
52ND NYPD Precinct
3016 Webster Avenue
Bronx, NY, 10467-4901

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

NELLY TATIS,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER NICHOLAS KONNER (Tax No. 940340), POLICE
OFFICER JOHN REPETTI (Tax No. 937359), and OFFICERS JOHN DOE, individually and in
their official capacities,

Defendants.

SUMMONS

FISHER, BYRIALSEN & KREIZER, PLLC
Attorneys for: Plaintiff
291 Broadway, Suite 709
New York, NY 10007
(212) 962-0848

Service of a copy of the within is hereby admitted

Dated: June 24, 2014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

NELLY TATIS,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, POLICE OFFICER
NICHOLAS KONNER (Tax No. 940340),
POLICE OFFICE JOHN REPETTI (Tax No.
937359), and OFFICERS JOHN DOE,
individually and in their official capacities,
Defendants.

Plaintiff, NELLY TATIS, by and through her attorneys, **Fisher, Byrialsen & Kreizer, PLLC**, complaining of the defendants herein, respectfully shows the Court and alleges:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1988, for the wrongful acts of Defendants CITY OF NEW YORK, POLICE OFFICER NICHOLAS KONNER (Tax No. 940340), POLICE OFFICER JOHN REPETTI (Tax No. 937359), and OFFICERS JOHN DOE, as Officers of the New York City Police Department, acting under color of state law and pursuant to their authority, in violation of Plaintiff's rights secured by the Civil Rights Act of 1871, 42 U.S.C. §§ 1981, 1983, 1985 and 1988; by the United States Constitution, including its Fourth, Fifth, Eighth, and Fourteenth Amendments; and by the laws and Constitution of the State of New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1988, and the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, and the constitutional, statutory, and common laws of the State of New York.

VENUE

3. The basis of venue is the place of the occurrence.

NOTICE OF CLAIM

4. Plaintiff, NELLY TATIS, filed a pro se Notice of Claim on October 30, 2013 with the Comptroller of the City of New York within 90 days of the events complained of herein. An Amended Notice of Complaint was filed on January 28, 2014. A 50-H hearing was held on March 11, 2014. More than 30 days have elapsed since the filing of the Notice of Claim and the holding of a 50-H deposition, and adjustment or payment thereof has been neglected or refused.

TRIAL BY JURY

5. Plaintiff demands a trial by jury on each and every one of her claims as pleaded herein.

PARTIES

6. At all times relevant hereto NELLY TATIS was and is a resident of the State of New York and County of Bronx at the time of the incident.

7. At all times relevant hereto defendant The City of New York (hereinafter, "NYC") was and is a municipality of the State of New York and owns, operates, manages, directs, and controls the New York City Police Department, which employs the other named Defendants.

8. At all times relevant to this action, Defendants POLICE OFFICER NICHOLAS KONNER (Tax No. 940340), POLICE OFFICER JOHN REPETTI (Tax No. 937359), and

OFFICERS JOHN DOE are and were officers employed by the New York City Police Department (hereinafter, "NYPD"), and acting under color of state law. They are being sued in both their individual and official capacities.

9. At all times relevant hereto and in all their actions described herein, Defendants POLICE OFFICER NICHOLAS KONNER (Tax No. 940340), POLICE OFFICER JOHN REPETTI (Tax No. 937359), and OFFICERS JOHN DOE were acting under color of statutes, ordinances, regulations, policies, customs, and usages of the NYPD and NYC, pursuant to their authority as employees, servants, and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents, and police officers.

10. NYC was responsible for the hiring, training, supervision, discipline, retention, and promotion of the police officers, sergeants, and/or employees of the NYPD. They are being sued both in their individual and official capacity.

FACTS

11. On August 29, 2013, Ms. Tatis, a 66 year old mother and grandmother, resided at 590 East 3rd Street, Mount Vernon, New York 10553, her residence for the past seven years.

12. At the time and prior to her arrest on August 29, 2013, Ms. Tatis was employed as a licensed street vendor selling ice cream to the public. She has been a licensed street vendor in Bronx County since 1995.

13. Since 1995 and continuing to the time of her arrest on August 29, 2013, Ms. Tatis would rent a pushcart and stainless steel barrels from Delicioso Coco Helado Inc., located at 849 St. Ann's Avenue in the County of Bronx and personally purchase 3 gallon barrels of ice cream

and serving supplies/utensils from the same company.

14. At the time and prior to her arrest on August 29, 2013, Ms. Tatis had a valid City of New York Department of Health Mobile Food Vendor Full Term License; License No. 0052047; Issued 4/30/2013; Expires 5/31/2015.

15. At the time and prior to her arrest on August 29, 2013, Ms. Tatis had a valid City of New York Department of Health and Mental Hygiene Permit/Certificate of Qualification authorizing her to operate a permitted mobile food vending unit; Permit No. H05 0052047 A; Issued 4/30/2013; Expires 5/31/2015.

16. At the time and prior to her arrest on August 29, 2013, Ms. Tatis had a Certificate of Authority issued by the New York State Department of Taxation and Finance authorizing her to collect sales and use tax.; Identification No. NY-7984602.

17. Since 2011 and continuing to the time of her arrest on August 29, 2013, Ms. Tatis had been repeatedly harassed, verbally assaulted, and racially discriminated against by Defendants POLICE OFFICER NICHOLAS KONNER (Tax No. 940340), POLICE OFFICER JOHN REPETTI (Tax No. 937359), and OFFICERS JOHN DOE who would issue countless summons tickets to Ms. Tatis falsely alleging that she was not licensed and her pushcart was not permitted.

18. Since 2011 and continuing to the time of her arrest on August 29, 2013, these summonses were issued without provocation, suspicion or probable cause. Having been a licensed vendor in the Bronx since 1995, Ms. Tatis always wore her vending license on her shirt and displayed her permits on her pushcart. The summonses would be dismissed when Ms. Tatis provided the Court with her documentation.

19. Since 2011 and continuing to the time of her arrest on August 29, 2013, the

harassment was vicious, ongoing, and obviously fueled by the Defendant Officers' racial bias (i.e. stating racial epithets and regularly accusing Ms. Tatis of not paying taxes despite the fact that she must show proof of such to get her licensing).

20. On August 20, 2013, just nine days before the subject arrest, while she was selling ice cream, Ms. Tatis was falsely accused by the same Defendant Officers of having assaulted a woman Ms. Tatis had never met before. She was falsely arrested and imprisoned and maliciously prosecuted on docket number 2013BX048682 and the case was dismissed on motion of the District Attorney's Office on April 18, 2014.

21. At the time and prior to her arrest on August 29, 2013, Ms. Tatis would regularly sell ice cream to the public at a location near the intersection of Valentine Avenue and East Fordham Road in Bronx County.

22. On August 29, 2013 at approximately 2:00 pm, another vendor was stationed at her regular location near the intersection of Valentine Avenue and East Fordham Road. As a result, Ms. Tatis pushed her cart down East Fordham Road to the intersection of East Fordham Road and Tiebout Avenue.

23. On August 29, 2013 at approximately 2:00 pm, Defendants POLICE OFFICER NICHOLAS KONNER (Tax No. 940340), POLICE OFFICER JOHN REPETTI (Tax No. 937359), and OFFICERS JOHN DOE exited a marked police car and marked police van and approached Ms. Tatis in uniform near the intersection of East Fordham Road and Tiebout Avenue.

24. On August 29, 2013 at approximately 2:00 pm, Ms. Tatis displayed the City of New York Department of Health and Mental Hygiene and New York State Department of Taxation and Finance permits on her pushcart.

25. On August 29, 2013 at approximately 2:00 pm, Ms. Tatis was wearing her vendor's license on her shirt pocket.

26. On August 29, 2013 at approximately 2:00 pm, a Defendant Officer placed Ms. Tatis under arrest without provocation, suspicion, or probable cause.

27. Other Defendant Officers were present when Ms. Tatis was arrested without provocation, suspicion, or probable cause and failed to intervene.

28. The Defendant Officer twisted Ms. Tatis' arms behind her back, placed her in handcuffs, and patted her down.

29. Ms. Tatis asked the Defendant Officers why she was being arrested and a Defendant Officer told her to "shut-up."

30. Ms. Tatis' twenty-five year old granddaughter, Yarili Abrau, arrived at the location to assist her grandmother and saw her in handcuffs.

31. Ms. Tatis' granddaughter asked the Defendant Officers why her grandmother was being arrest and in Ms. Tatis' presence, a Defendant Officer told her granddaughter to "shut-up."

32. At the time and after her arrest, the Defendant Officers threw out Ms. Tatis' full supply of ice cream, including multiple 3 gallon barrels, and put her pushcart in the police van.

33. At the time and after her arrest, the weather was very hot and humid and Ms. Tatis was placed in a police vehicle with no air-conditioning and was not given water.

34. At the time and after her arrest, the handcuffs were placed so tight that it caused Ms. Tatis' wrists to swell.

35. Ms. Tatis was brought to the 52ND precinct at approximately 3:00 pm.

36. When she arrived at the 52ND precinct Ms. Tatis fainted from dehydration.

37. Ms. Tatis was brought to a holding cell.

38. Ms. Tatis repeatedly asked for water and her blood pressure medication from her holding cell but she was ignored by Officers.

39. Ms. Tatis was also deprived of food for her entire stay at the 52nd precinct despite telling Officers she was a diabetic.

40. Ms. Tatis was transported from the 52ND precinct to Central Booking on 161ST Street in the County of Bronx at approximately 10:00 pm.

41. Ms. Tatis was placed in a holding cell in Central Booking and again asked for water and her blood pressure medication but was ignored by Officers.

42. Ms. Tatis was not arraigned until 6:00 pm the following day, August 30, 2013.

43. Ms. Tatis then learned for the first time that she was charged on docket 2013BX050541 with A.C. 20-453, General Vendor License Required, and N.Y.S.T.L. 1817 (d)(1), Sales and Compensating Use Taxes.

44. Ms. Tatis was released on her own recognizance and the case was adjourned until October 18, 2013.

45. On October 18, 2010, the case was dismissed and sealed on motion of the District Attorney's Office.

46. As a result of Ms. Tatis' false arrest and imprisonment and malicious prosecution, the following property owned by her was damaged, destroyed, or never returned: stainless steel ice cream covers valued at approximately \$20.00 each; stainless steel serving spoons valued at approximately \$3.00 each; umbrella valued at approximately \$80.00 each; 3 gallon tubes of ice cream valued at \$19.50-\$23.25 each. These items were purchased by Ms. Tatis from Delicioso Coco Helado Inc.

45. As a result of Ms. Tatis' false arrest and imprisonment and malicious prosecution

and past harassment, verbal assault, and racial discrimination, she was too scared to continue her occupation after nearly 20 years of working as a mobile food vendor, even though she is still legally licensed to do so.

46. As a result of Ms. Tatis' false arrest and imprisonment and malicious prosecution, she sustained embarrassment, humiliation, and emotional, mental, and psychological pain and suffering.

46. Defendants POLICE OFFICER NICHOLAS KONNER (Tax No. 940340), POLICE OFFICER JOHN REPETTI (Tax No. 937359), and OFFICERS JOHN DOE have used their position of authority and power to harass, verbally assault, and discrimination others Bronx County residents based on racial, sex, and/or sexual orientation in addition to Ms. Tatis.

47. On or about October 30, 2013, and within ninety (90) days of the incident, a pro se Notice of Claim was served upon NYC on behalf of Plaintiff. An Amended Notice of Complaint was filed on January 28, 2014.

48. More than 30 days have elapsed since the filing of the Notice of Claim and the holding of a 50-H deposition, and adjustment or payment thereof has been neglected or refused.

49. This action is commenced within one (1) year and ninety (90) days of the occurrence herein.

FIRST CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS

50. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

51. All of the aforementioned acts of Defendants, their agents, servants, and employees were carried out under color of state law.

52. All of the aforementioned acts deprived Plaintiff of the rights, privileges, and

immunities guaranteed citizens of the United States by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

53. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

54. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

55. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

56. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. §1983; and by the laws and Constitution of the State of New York, for which the Defendants are individually and jointly liable.

THIRD CLAIM FOR RELIEF:
FALSE ARREST

57. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

58. As a result of Defendants' aforementioned conduct, Plaintiff was subject to an illegal, improper, and false seizure and arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated, and prosecuted by the

Defendants in criminal proceedings, without any probable cause, privilege, or consent.

59. As a result of their false arrest, Plaintiff was subjected to humiliation, mental anguish, ridicule, and disgrace and was deprived of her liberty. Plaintiffs were discredited in the minds of many members of the community.

60. All of the aforementioned acts of the Defendants constituted false arrest under the laws of the State of New York and the Defendants are liable for said damage.

**FOURTH CLAIM FOR RELIEF:
FALSE IMPRISONMENT**

61. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

62. As a result of their false imprisonment, Plaintiff was subjected to humiliation, ridicule, mental anguish and disgrace and was deprived of their liberty. Plaintiff was discredited in the minds of many members of the community.

63. All of the aforementioned acts of the Defendants constituted false imprisonment under the law of the State of New York and the Defendants are liable said damage.

**FIFTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION**

64. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

65. By the actions described above the defendants maliciously and without probable cause, prosecuted the Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated their statutory and common law right as guaranteed by the laws and constitution of the State of New York.

66. As a result of the foregoing, Plaintiff were deprived of her liberty, suffered great humiliation, anguish, costs and expenses and was otherwise damaged and injured.

SIXTH CLAIM FOR RELIEF:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

67. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

68. Defendant police officers engaged in extreme and outrageous conduct beyond all possible bounds of decency when they beat, harassed and threatened the Plaintiffs.

69. Defendants' extreme and outrageous conduct was intended to inflict severe distress upon the Plaintiffs.

70. The Defendant officers' outrageous conduct did inflict severe distress upon Plaintiff, which caused Plaintiff to suffer anxiety and mental anguish.

71. All of the aforementioned acts of the Defendants constituted intentional infliction of emotional distress under the law of the State of New York and the Defendants are liable for said damage.

SEVENTH CLAIM FOR RELIEF:
FAILURE TO INTERVENE
UNDER FOURTH AMENDMENT – 42 U.S.C. § 1983

72. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

73. Members of the NYPD have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe another member of the police department employing unjustified and excessive force

against a civilian or falsely arresting a civilian.

74. The defendant officers were present at the time and near the intersection of East Fordham Road and Tiebout Avenue in the County of Bronx and State of New York and in the vicinity of Plaintiff's arrest and witnessed other officers, *inter alia*,

- a. Search Plaintiff without cause
- b. Falsely arrest Plaintiff, and
- c. Use unlawful force against plaintiff, including pushing Plaintiff into a police car and punching her.

75. The search of Plaintiff's person was clearly made without probable cause, reasonable suspicion, or any other legal justification, yet defendants failed to take any action or make any effort to intervene, halt or protect plaintiff from the illegal search.

76. Defendants' violated Plaintiff's constitutional rights by failing to intervene in the illegal search of Plaintiff, her arrest or Defendants' clearly unconstitutional use of force that resulted in injury and damages.

77. All of the aforementioned acts of Defendants constituted a violation of Plaintiff's civil rights provided to him under the United States Constitution and 42 U.S.C. § 1983, 1985, and 1986.

EIGHTH CLAIM FOR RELIEF:
MUNICIPAL LIABILITY

78. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

79. The acts complained of herein were carried out by the Defendant officers in their capacities as police officers, employees and officials pursuant to the customs, policies, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said departments.

80. Prior to August 29, 2013, NYC and NYPD developed and maintained policies or customs exhibiting deliberate indifference to the Constitutional rights of persons in NYC, which caused the violation of Plaintiff's rights.

81. It was the policy and/or custom of NYC and NYPD to inadequately and improperly train and supervise its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers.

82. It was the policy and/or custom of NYC and NYPD to inadequately and improperly investigate complaints of misconduct against police officers filed by persons in police custody, and acts of misconduct were instead tolerated by NYC, including, but not limited to the following incidents: assault and battery, harassment, negligence, intentional infliction of emotional distress and deliberate indifference to medical needs.

83. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of Plaintiff.

84. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the proximate cause of the constitutional violations suffered by Plaintiffs as alleged herein.

85. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the moving force behind the constitutional violations suffered by Plaintiffs as alleged herein.

86. As a result of the above described policies and customs, police officers of NYPD, including the defendant officers, believed that their actions would not be monitored by supervisory officers and that their own misconduct would not be investigated or sanctioned, but

instead would be tolerated.

87. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiffs.

88. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate officers and were directly responsible for the violation of Plaintiffs' constitutional rights.

89. Defendants NYC, as municipal policymakers in the training and supervision of Defendant police officers/employees, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violations of their freedom from deprivation of Liberty without Due process of law in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

90. All of the foregoing acts by Defendants deprived Plaintiffs of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from unreasonable search and seizure under the Fourth and Fourteenth Amendments to the United States Constitution;
- c. To be protected against violations of their civil and constitutional rights;
- d. Not to have cruel and unusual punishment imposed upon them; and
- e. To receive equal protection under the law.

**NINTH CLAIM FOR RELIEF:
CONSPIRACY TO INTERFERE WITH CIVIL RIGHTS
UNDER 42 U.S.C. § 1983, 1985, 1986**

91. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

92. All the defendants, acting with each other individually and on behalf of and under the auspices and control of the City, and under color of law, conspired to injure plaintiffs in her person and property and deprive plaintiff of their First, Fourth, Fifth and Fourteenth Amendment rights. The defendants jointly caused such deprivation of rights by acting in concert to disseminate false information concerning the plaintiffs and by disseminating false information that lacked any reasonable basis or probable cause to support it that the plaintiffs committed a crime, and/or to charge them with a crime, and/or to arrest them.

93. The defendants further deprived the plaintiffs of their due process rights specifically by conspiring to and assisting in the arrest of the plaintiffs without probable cause and participating in the prosecution of plaintiffs; by denying the plaintiffs their First, Fourth, Fifth and Fourteenth Amendment rights via a conspiracy to deprive the plaintiffs of their liberty and taking their property without due process and compensation; conspiring together to cover up the misconduct they committed; and preventing the plaintiffs from being compensated for their wrongful arrest, for the loss of their constitutional rights, the loss of their job and for the emotional harm they incurred.

94. The aforesaid actions by the defendant police officers were done pursuant to an official municipal policy or custom of the city and state, which policy involved the indiscriminate detention, interrogation, intimidation, denial of medical attention, excessive force and prosecution of individuals who were not engaged in criminal conduct, and for the purpose of

thwarting the fair administration of justice.

95. The defendants' failure to stop these wrongful acts and actions constitutes a breach of their duty to do so under 42 U.S.C. § 1986.

96. The defendants knew or should have known that the misconduct and false and fabricated accusations and/or charges against plaintiffs were violative of her First, Fourth, Fifth and Fourteenth Amendment rights to due process and equal protection, and were tantamount to unequal protection under the law, in violation of the plaintiff's fundamental rights under the Constitution.

97. Said defendants had the power to prevent the continued due process violations against the plaintiff, yet had failed to prevent the dissemination of false information and/or to dismiss the fabricated accusations and charges against plaintiffs, and/or to protect the plaintiffs from the unwarranted and potential harm and penalties of said charges.

98. Defendants herein, their agents, servants and employees, motivated in part by racial and/or ethnic animus, conspired to deprive plaintiffs of their federal civil and constitutional rights, in violation of 42 U.S.C. § 1985 and the laws and Constitution of the State of New York

99. All of the aforementioned acts of Defendants constituted a violation of Plaintiffs' civil rights provided to him under the United States Constitution and 42 U.S.C. § 1983, 1985, and 1986 and the laws and Constitution of the State of New York.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

1. A monetary sum that exceeds the jurisdictional limits of all lower courts that might otherwise have jurisdiction herein;
2. The costs and disbursements of this action; and
4. Such other and further relief as this Court deems just and proper.

DATED: New York, New York
 June 24, 2014

Respectfully submitted,


Kaitlin F. Nares, Esq.

Fisher, Byrialsen & Kreizer, PLLC
Attorney for Plaintiff
291 Broadway, Suite 709
New York, New York 10007
(212) 962-0848

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS.:

COUNTY OF NEW YORK)

NELLY TATIS , being duly sworn, deposes and says:

That deponent is the Plaintiff in the within action; and deponent has read the foregoing Summons and Verified Complaint and knows the contents thereof; that the same is true except for as to those matters therein stated to be upon information and belief, and as to those matters, deponent believes them to be true.

Nelly Tatis
NELLY TATIS

STATE OF NEW YORK)

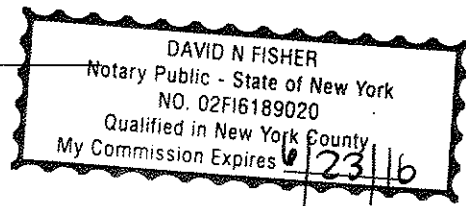
) SS.:

COUNTY OF NEW YORK)

I CERTIFY that on June 24, 14, NELLY TATIS, personally came before me and acknowledged under oath, to my satisfaction, that this person:

- (a) is named in and personally signed the document; and
- (b) signed, sealed, delivered this document as his act and deed.

[Signature]
Notary Public



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

NELLY TATIS,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER NICHOLAS KONNER (Tax No. 940340), POLICE
OFFICER JOHN REPETTI (Tax No. 937359), and OFFICERS JOHN DOE, individually and in
their official capacities,

Defendants.

VERIFIED COMPLAINT

FISHER, BYRIALSEN & KREIZER, PLLC
Attorneys for: Plaintiff
291 Broadway, Suite 709
New York, NY 10007
(212) 962-0848

Service of a copy of the within is hereby admitted

Dated: June 24, 2014
